

26NWCV00823 26NWCV00823

County: los-angeles

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Case Number: 26NWCV00823 Hearing Date: June 24, 2026 Dept: SED

PAUL MICHAEL MAMARADLO

NGUYEN V. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 26NWCV00823

HEARING: 06/24/2026 @ 9:30 a.m.

#15

TENTATIVE ORDER

Defendant American Honda Motor
Co., Inc.'s demurrer is OVERRULED.

Defendant American Honda Motor Co., Inc.'s motion to
strike is DENIED.

Defendant American Honda Motor
Co., Inc. shall file and serve an Answer to the Complaint within 30 days of
notice of this ruling.

Moving party to give notice.

Defendant American Honda Motor
Co., Inc.'s (Defendant) demurs to the third cause of action of Plaintiff Paul
Michale Mamaradlo Nguyen (Plaintiff)'s Complaint.

Background

This is a lemon law action. Plaintiff filed the operative Complaint against Defendant and Does 1 through 10, inclusive, asserting three causes of action: (1) Violation of the Song-Beverly Consumer Warranty Act Breach of Express Warranty; (2) Violation of the Song-Beverly Consumer Warranty Act Breach of Implied Warranty; and (3) Violation of Business and Professions Code section 17200.

Demurrer

Legal
Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *¿* (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Plaintiff is only required to allege ultimate facts, not evidentiary facts. (See Committee on Children's Television, Inc. v. General Foods Corp. (1983)

35 Cal.3d 197, 212 [“the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts”]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff’s allegations must be accepted as true on demurrer. (See *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924 [“For purposes of reviewing a demurrer, we accept the truth of material facts properly pleaded in the operative complaint”].)

Meet and
Confer

Code of Civil Procedure section 430.41, subdivision (a) requires the moving party to meet and confer “in person, by video conference, or by telephone” in an attempt to resolve a demurrer’s deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

The Court finds that the Defendant has fulfilled the meet and confer requirement. (Galstyan Decl., ¶ 3, Ex. B.)

Business and
Professions Code Section 17200

Defendant argues that Plaintiff’s third cause of action for violation of the Unfair Competition Law (UCL) fails to state sufficient facts to meet each required element of the cause of action.

The UCLA prohibits unlawful, unfair, or fraudulent business acts or practices. (Bus. & Prof. Code, § 17200.) Section 17200’s “unlawful” prong “borrows violations of other laws. . .and makes those unlawful practices actionable under the UCL.” (Klein v. Chevron U.S.A., Inc. (2012) 202 Cal.App.4th 1342, 1383.) “[V]irtually any law or regulation—federal or state, statutory or common law—can serve as [a] predicate for a . . .[section] 17200 ‘unlawful’ violation.” (Id.) “A business practice is “fraudulent” within the meaning of section 17200 if it is “likely to deceive the public.” (Id. at 1380.) A business practice is “unfair” within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive, or unscrupulous and causes injury to consumers which outweighs its benefits. (Nolte

v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1407-1408.)

In order to plead a claim under

Business and Professions Code section 17200, there must be allegations showing an unlawful, unfair, or fraudulent business act or practice. (Paulus v. Bob Lynch Ford, Inc. (2006) 139 Cal. App. 4th 659, 676-677.) To

plead this statutory claim, the pleadings must state with reasonable particularity the facts supporting the statutory elements of the violation. (Khoury v. Maly's of California, Inc. (1993) 14 Cal. App. 4th 612, 619.)

The Court finds the allegations

supporting the UCL claim are adequate. The cause of action alleges that Defendant engaged in unlawful, unfair, and fraudulent business practices and that "consumers are likely to be deceived by the acts described above in this complaint." (Compl., ¶ 46.) Plaintiff further alleges that Defendant intentionally placed the subject vehicle into the stream of commerce despite knowing it contained defects that substantially affected the vehicle's value and safety, intentionally failed to properly diagnose the vehicle's issues, and installed defective or inadequate replacement components that would not correct the vehicle's mechanical problems. (Id., ¶ 38.) Construing the allegations liberally, the Court finds the Complaint adequately alleges conduct that is likely to deceive members of the public.

Further, the Court finds

Defendant's conduct is sufficiently alleged to be unlawful. Plaintiff expressly incorporates all preceding allegations into the UCL cause of action and alleges that Defendant engaged in unlawful business practices through the conduct alleged elsewhere in the Complaint. (Compl., ¶¶ 31, 36-38.) The preceding allegations consist primarily of Defendant's alleged violations of the Song-Beverly Consumer Warranty Act. (Id., ¶¶ 14-20, 23-29.) Because the UCL may be predicated upon violations of other statutes, the Court finds Plaintiff has adequately alleged a predicate unlawful practice at the pleading stage.

Accordingly, the demurrer to the third cause of action is OVERRULED.

Motion to Strike

The court may, upon a motion, or

at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at § 436, subd.(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id. at § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. at § 437.)

Defendant moves to strike Plaintiff's prayer for injunctive relief and restitution under Business and Professions Code section 17200 on the ground that Plaintiff has failed to state a cause of action for violation of the UCL. As discussed above, the Court overrules Defendant's demurrer to the third cause of action.

Because Defendant's motion to strike is premised entirely upon the alleged insufficiency of the UCL claim and raises no independent challenge to the requested remedies, the motion to strike is DENIED.

Conclusion

Based on the foregoing, Defendant American Honda Motor Co., Inc.'s demurrer is OVERRULED.

Defendant American Honda Motor Co., Inc.'s motion to strike is DENIED.

Defendant American Honda Motor Co., Inc. shall file and serve an Answer to the Complaint within 30 days of notice of this ruling.